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# ACT ON THE PREVENTION OF DOMESTIC VIOLENCE AND PROTECTION, ETC. OF VICTIMS

[Enforcement Date 09. Jun, 2020.] [Act No.17437, 09. Jun, 2020., Partial Amendment]

성평등가족부 (친밀관계폭력방지과) , 02-2100-6422
성평등가족부 (폭력예방교육과) , 02-2100-6442

**Article 1 (Purpose)** The purpose of this Act is to prevent domestic violence and to protect and support victims thereof.
[This Article Wholly Amended on Apr. 28, 2006]

**Article 1-2 (Basic Ideas)** The victims of domestic violence shall have the rights to be respected for human dignity and security by swiftly escaping from the damaging situation.
[This Article Newly Inserted on Dec. 12, 2017]

**Article 2 (Definitions)** The terms used in this nuclear energy shall be defined as follows:

1. The term "domestic violence" means any act under subparagraph 1 of Article 2 of the Act on Special Cases concerning the Punishment, etc. of Crimes of Domestic Violence;
2. The term "domestic violence assailant" means a person under subparagraph 4 of Article 2 of the Act on Special Cases concerning the Punishment, etc. of Crimes of Domestic Violence;
3. The term "victim" means a person who has been directly damaged by domestic violence;
4. The term "child" means a person who is under 18 years of age.

[This Article Wholly Amended on Oct. 17, 2007]

**Article 3** Deleted. <Apr. 28, 2006>

**Article 4 (Responsibilities of the State and Other Entities)** (1) The State and a local government shall take each of the following measures to prevent domestic violence and to protect and support victims thereof: <Amended on May 8, 2009; Jul. 30, 2013; Jun. 22, 2015; Dec. 12, 2017; Jun. 9, 2020>

1. Establishment and operation of a domestic violence reporting system;
2. Investigation, research, education and publicity for the prevention of domestic violence;
3. Establishment and operation of facilities to protect and support victims;
4. Grant of a preferential right to residency in a rental house, and provision of supportive services for self-reliance and self-support such as vocational training;
5. Legal aid and provision of other supportive services for victims;
6. Establishment and operation of a cooperation network among related agencies to facilitate protection and support for victims;
7. Improvement of related statutes and formulation, implementation and evaluation of various policies for preventing and forestalling domestic violence and protecting and supporting victims;
8. Preparation of safety measures for personal protection of victims and employees, such as counselors working in emergency hotlines under Article 4-6, counseling centers for domestic violence under Article 5, shelters for victims of domestic violence under Article 7;
9. Prevention of personal exposure of victims and establishment of a victim protection and support system in consideration of the characteristics of damage from domestic violence;
10. Provision of counseling and treatment programs necessary for physical and mental recovery of children who have witnessed, or have suffered, domestic violence.

(2) In order to fully perform the duties under paragraph (1), the State and a local government shall take budgetary measures, such as securing financial resources. <Amended on Dec. 12, 2017>

(3) A Special Metropolitan City, a Metropolitan City, a Special Self-Governing City, Do, a Special Self-Governing Province and a Si/Gun/Gu (referring